

Calendar Line 2

Case Name: *Roziland Blue vs Second Harvest of Silicon Valley*

Case No.: 24CV432543

Defendant moves the Court for an order that Plaintiff appear for an independent neuropsychological evaluation (IME). The IME is not the issue. More pressing is Defendant's request that the Court use its discretion to order the IME without a requirement that the raw test data be provided directly to Plaintiff's counsel, and instead to order such data disclosed only to an expert retained by Plaintiff. Defendant also asks the Court to deny Plaintiff's request in opposition to limit the length of the IME below the "industry standard."

In *Randy's Trucking v. Superior Court* (2023) 91 Cal.App.5th 818, the Court of Appeal held that the superior court did not abuse its discretion in compelling the disclosure raw data to plaintiff's counsel pursuant to a protective order. (*Id.*, at p. 842). As the court explained, a plaintiff has a right to take discovery and cross-examine defendant's expert witnesses, which includes being able to examine the expert on the matter upon which the expert's opinion is based and the reasons for that opinion. (Evid. Code, § 721, subd. (a).) Without raw data, plaintiffs cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion. (*Randy's Trucking, supra*, 91 Cal.App.5th at p. 838.) The appellate court also rejected the argument that the disclosure should be made only to the plaintiff's expert, explaining (among other things) that a party "should not be forced to retain an expert to gain access to these materials." (*Ibid.*)

Here, the Court interprets "findings" and "the results of all tests made" in Code of Civil Procedure section 2032.610 broadly to include raw testing data. Indeed, a distinction is drawn in the section between "results" and "conclusions." This interpretation also promotes the well-established policy in favor of broad pre-trial disclosure that runs throughout the Civil Discovery Act. And for the reasons well stated in *Randy's Trucking, supra*, the Court finds that an appropriate balance is struck by requiring disclosure to Plaintiff's counsel subject to a protective order. This allows Plaintiff access to the material necessary to cross-examine Defendant's expert and prepare for trial, and it will sufficiently minimize the risk of improper or undue distribution of the data to third parties. As disclosure of raw test data to Plaintiff's counsel falls within the discretion of the trial court, the Court exercises its discretion in favor of Plaintiff. (*Randy's Trucking, supra*, 91 Cal.App.5th at p. 837.)

Defendant's attempt to distinguish *Randy's Trucking* is not persuasive. As a threshold matter, Defendant's proffered evidence of a substantial or growing opinion in the psychological community lacks foundation. Defendant has not even submitted a declaration from its own expert, instead relying on defense counsel's submission of hearsay statements and documents, including the "Collective Statement" (Van Hespín Decl., Ex. A).

As for the Collective Statement, even if the Court were to take it into account, the Court is not persuaded. The Collective Statement emphasizes that "[o]nly individuals with proper training and professional obligations to protect the tests should have access to the materials in question." (Van Hespín Decl., Ex. A ¶ 2.) This would, on its face, seem to include attorneys. The Collective Statement also expresses concerns about the material becoming "available to the general public." (*Id.*, at ¶ 2, 3, 6 ("general release"), 7 ("in public", "general public

distribution”), 8 (“the lay public”).) Providing material to attorneys who are subject to ethical obligations and protective orders is not dissemination to the general public. Thus, it would appear that the concern of access being limited to “persons with professional interests who will safeguard their use” is met. (*Id.*, at ¶ 7.)

But despite these initial policy statements, the Collective Statement goes on to warn against the perceived evils of providing raw test data *generated from tests that are being administered for forensic purposes* to attorneys because attorneys could *potentially* coach future clients, violate protective orders, and leak information both intentionally and inadvertently. (*Id.*, at ¶ 5, 11.) The Collective Statement concludes that “allowing non-psychologists to receive protected psychological test materials, including examinee’s specific responses, test questions, and test stimuli, poses a serious threat of widespread social harm by compromising test security.” (*Id.*, at ¶ 14.) This Court is not willing to embrace this grim view of the legal profession and its respect for protective orders and ethics and to adopt presumptively an altruistic view of the psychological profession that would limit an attorney’s right to possess information necessary to test the quality and veracity of an opposing party’s evidence.

In summary, the motion for an order compelling Plaintiff to appear for an IME is GRANTED IN PART.

Plaintiff shall appear for an IME, the date and time of the which will be set with Defendant’s expert based on the parties meeting and conferring.

The Court GRANTS Plaintiff’s request that the order for the examination include a provision requiring disclosure of the raw data and testing materials directly to Plaintiff’s counsel, subject to a protective order¹ as crafted by the parties after further meeting and conferring, if necessary.

The Court is not persuaded, however, by Plaintiff’s request to limit the examination to less than 8 hours. That request is DENIED. The IME shall not exceed 8 hours, including breaks.

The Court will prepare the final order.

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¹ The Collective Statement’s citation to *Detroit Edison Co. v. NLRB* (1979) 440 U.S. 301 (improperly cited as appearing in Volume 404 as opposed to 440) is overstated. That case involved a particular set of facts in which the NLRB “cited no principle of national labor policy to warrant a remedy that would unnecessarily disserve” the interest against disclosure test results asserted by the company. (*Detroit Edison Co.*, *supra*, 440 U.S. at p. 315.)

Calendar Line 4

Case Name: *Kennon Hudson vs Richard Gorini et al*

Case No.: 25CV462300

Plaintiff seeks an order compelling Defendant to provide further, code-compliant responses to Plaintiff's Special Interrogatories, Set One, Nos. 7, 15, 19, 24, 28, 32, 36, 40, 44, 48, 52 and 56. Plaintiff also requests monetary sanctions against Defendant in the amount of \$5,500.00.

As a threshold matter, the Court is satisfied with Plaintiff's meet and confer efforts.

Code of Civil Procedure § 2030.220(a) states, "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." A broad statement that the information is available from a mass of documents is insufficient. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 784.)

Defendant argues that his responses "specifically identified information, witnesses, and categories of documents including, relevant email correspondence during defined periods, correspondence involving Scott Ross, Jennifer Scharre, and Jerome Bellotti, and filings in the probate actions." (Opposition, at p. 4.) The Court is not persuaded. Instead, the Court finds the responses inherently non-specific. Even an assertion that Defendant "specifically" identified "categories" is not specifically responding to the requests, and there is no specific identification of *relevant* material when a response refers, for instance, to months of correspondence or years of court filings.

Defendant argues that Plaintiff's use of the words "refer" and "relate to" are "so broad and expansive as to encompass virtually every communication, note, pleading, and document generated in the multi-year representation of Plaintiff in the underlying trust and probate matters."² (Opposition, at p. 2.) Taken in the context of the propounded discovery requests and the nature of the litigation, the Court disagrees. The Court has no doubt Defendant knows the specific, individual items upon which he relies, but he seeks to leave it to Plaintiff to guess.

Section 2030.300(d) provides that the Court shall impose monetary sanctions against any party, person or attorney who unsuccessfully opposes a motion to compel a further response unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The Court does not find substantial justification or other circumstances to preclude the imposition of sanctions.

Plaintiff's motion is GRANTED. Defendant shall provide further, code-compliant responses to Plaintiff's Special Interrogatories, Set One, Nos. 7, 15, 19, 24, 28, 32, 36, 40, 44, 48, 52 and 56 within 15 days of service of the final order.

Defendant shall pay monetary sanctions to Plaintiff in the amount of \$5,500.00 within 30 days of the date of service of the final order.

² Like Plaintiff, the Court is perplexed by Defendant's citation to *Manlin v. Milner* (2022) 82 Cal.App.5th 1004 as it does not appear to support Defendant's asserted proposition.